



भारतीय विधिज्ञ परिषद् BAR COUNCIL OF INDIA

(Statutory Body Constituted under the Advocates Act, 1961)

21, Rouse Avenue Institutional Area, New Delhi - 110 002

BCI: D: 1095 /2017 (LE/Std. 27/28.5.2017) 24.06.2017

The Registrar
Ram Krishna Dharmarth Foundation University
Airport Bypass Road, Gandhi Nagar,
Bhopal - 462 036
Madhya Pradesh

Letter of Consent

Sub: Extension of approval of affiliation to Faculty of Law, Ram Krishna Dharmarth Foundation University, Bhopal, Madhya Pradesh for imparting three year LL.B. course with intake of existing two sections of 60 students in each section with one additional section of 60 students i.e total of three sections of 60 students in each section and five year BA. LLB. integrated course with an intake of two sections of 60 students in each section for a period of three years i.e. for the academic years 2016-2017, 2017-2018 and 2018-19.

Sir,

The Standing Committee (Sub-Committee) of the Legal Education Committee of the Bar Council of India at its meeting held on 27th and 28th May, 2017 considered the inspection report of **Faculty of Law, Ram Krishna Dharmarth Foundation University, Bhopal, Madhya Pradesh**. After consideration, Committee made the following recommendations :-

The Standing Committee considered the inspection report of Faculty of Law, Ram Krishna Dharmarth Foundation University, Bhopal, Madhya Pradesh submitted by the inspection team. After consideration, Committee is of the view that Faculty of Law, Ram Krishna Dharmarth Foundation University, Bhopal, Madhya Pradesh be granted extension of approval of affiliation for imparting **three year LL.B. course** with intake of existing **two sections of 60 students** in each section with **one additional section of 60 students** i.e **total of three sections** of 60 students in each section and **five year BA. LLB. integrated course** with an intake of **two sections of 60 students** in each section for a period of **three years** i.e. for the academic years **2016-2017, 2017-2018 and 2018-19** subject to following conditions:

The recommendation is also for one additional section in three year LL.B. course. The same is also approved subject to the condition that the university to appoint one more additional faculty member for law through proper selection with intimation to the Bar Council of India within two months.

University to make both computer room and legal aid center workable for the benefit of the students.

The University/College is directed to also fulfill the following conditions, failure of which may lead to subsequent necessary and proper action being taken in this regard.

1. The Institution is directed to establish the Legal Aid Centre as per Clause-11, Schedule-III of Rule-11 of the Part-IV of the Legal Education Rules – 2008.
2. Institution should ensure the payment of salary to teachers as per Rules 22 schedule III, Part IV of BCI Rules.
3. The institution is directed to upgrade the library as mentioned below :-

“Today with the increasing cost of journals, books, wi-fi, e-library and online facilities including I.T. facilities, the minimum investment by each university should be Rs. 10 lakhs for each year. However any university/deemed university in rural area, it should be Rs. 5 Lakh and for all other affiliated colleges in the urban area it should be Rs. 2 lakhs and in rural area Rs. 1 lakh.”
4. The institution is also directed to upgrade the library by subscribing 10 sets of Indian Bar Review, selected judgments and professional Ethics published by Bar Council of India Trust.
5. Teacher Student ratio shall be as per Schedule-III, Rule-11, Clause-17, Part-IV of Bar Council of India Rules.
6. Institution is directed to inform the timings of the classes.

Further, the University/College must specify the timing of the college which has not been given. College should also maintain the timing which has to be minimum 5 ½ hours with half an hour break. College to file an affidavit to the Bar Council of India within six weeks mentioning the timing of the classes. The relevant rules are quoted hereunder :-

Rule (xxiii), Chapter I

“(xxiii) “Regular Course of Study” means and includes a course which runs for at least five hours a day continuously with an additional half an hour recess every day and running not less than thirty hours of working schedule per week.”

Rule 5 of Schedule III

“Classes may be conducted between 8 a.m. to 7 p.m. in an Centre of Legal Education, which is not fully residential. However the Library may remain open till 10 p.m.”

The library should be furnished as per Clause 15 of Schedule III of Legal Education Rules 2008 is given below :-

Minimum Library requirement: To start with, a Law Library shall have a set of AIR manual, Combo offer of CD of AIR Pvt. Ltd. (containing electronic version of AIR Supreme Court and High Court Data bases Research 1950-2015 (four connections each)

Cr. L.J. Data Base 1950-2015(four connections) AIR Privy Council Data Base 1900-1950 (four connections) AIR Mannual latest 6th Edition(1-45 Vols.) AIR Journal 2015, Cr. L.J. 2015, L.I.C. 2015, AIR Civil Cases 2015, AIR Law Lines 2015, AIR Cheque Dishonour Reports 2015, AIR Accident Claims and compensation 2015, Institution shall get electronic versions updated every year by AIR Pvt. Ltd. Central Acts and Local Acts, Criminal law journal, SCC, Company cases, Indian Bar Review, selected Judgements on Professional Ethics and Journals with the back volumes for at least ten years and also such number of text books in each subjects taught during the period according to the minimum standard ratio of ten books for each registered students. For running integrated program, text books of such other subjects are also to be kept in the similar minimum ratio.

Further, the institution should follow the attendance rule and file reply that they are following the aforesaid rule. The next inspection team must also see whether the said rule is being followed by the university or not. The relevant Rule 12 is given below :-

"12. End Semester Test: No student of any of the degree program shall be allowed to take the end semester test in a subject if the student concerned has not attended minimum of 70% of the classes held in the subject concerned as also the moot court room exercises, tutorials and practical training conducted in the subject taken together.

Provided that if a student for any exceptional reasons fail to attend 70% of the classes held in any subject, the Dean of the University or the Principal of the Centre of Legal Education, as the case may be, may allow the student to take the test if the student concerned attended at least 65% of the classes held in the subject concerned and attended 70% of classes in all the subjects taken together. The similar power shall rest with the Vice Chancellor or Director of a National Law University, or his authorized representative in the absence of the Dean of Law.

Provided further that a list of such students allowed to take the test with reasons recorded be forwarded to the Bar Council of India."

University/College should also admit students as per the below mentioned Rule:

7. Minimum marks in qualifying examination for admission: Bar Council of India may from time to time, stipulate the minimum percentage of marks not below 45% of the total marks in case of general category applicants, 42% for OBC category and 40% of the total marks in case of SC and ST applicants, to be obtained for the qualifying examination, such as +2 Examination in case of Integrated Five Years' course or Degree course in any discipline for Three years' LL.B. course, for the purpose of applying for and getting admitted into a Law Degree Program of any recognized University in either of the streams.

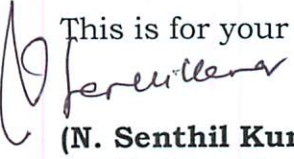
Provided that such a minimum qualifying marks shall not automatically entitle a person to get admission into an institution but only shall entitle the person concerned to fulfill other institutional criteria notified by the institution concerned or by the government concerned from time to time to apply for admission.

Institution should submit affidavit the compliance of the above conditions within six weeks.

University/College authorities are also required to apply before the Bar Council of India for further extension of approval six months in advance before expiry of the period of approval of affiliation granted by the Bar Council of India. i.e. on or before 31st December, 2018.

The recommendations of the Standing Committee are subject to final approval of the Legal Education Committee and General Council of the Bar Council of India.

This is for your information and necessary action.


(N. Senthil Kumar)
Asstt. Secretary
Head of the Deptt.

Yours Sincerely,


(Ashok Kumar Pandey)
Joint Secretary

Copy to:-

1. The Principal/Head of the Deptt.,
Faculty of Law,
Ram Krishna Dharmarth Foundation University
Airport Bypass Road, Gandhi Nagar,
Bhopal - 462 036
Madhya Pradesh